

be distinguished how much was received by one trustee and how much by the other, it is like throwing corn or money into another man's heap, where there is no reason that he who made this difficulty should have the whole; on the contrary, because it cannot be distinguished he shall have no part" (*d*).

4. **Trustee joining in a receipt must not permit the money to lie in the hands of the co-trustee.**—And though a trustee joining in a receipt may be safe in *merely permitting* his co-trustee to *receive* in the first instance, yet he will not be justified in allowing the money to *remain* in his hands for a longer period than the circumstances of the case reasonably require (*e*). And it is the duty of a trustee not to rely on a mere statement by his co-trustee, that the money has been duly invested, but to ascertain that such is the fact (*f*). Two trustees authorized a co-trustee to remove from their bankers a box containing *active* Spanish stock, for the purpose of converting it into *deferred* Spanish stock, and the co-trustee after the conversion returned the box with only a part of the converted stock in it, and the trustees, who relied on the assurance of the co-trustee to their solicitor that all was right, and did not ascertain the fact, were held liable for the deferred stock which had been misappropriated (*g*).

[*266] *5. **Walker v. Symonds.**—Walker v. Symonds (*a*) involved an unusual particularity of circumstances; but as Lord Eldon described it as a case of great importance to trustees in general (*b*), it may be useful to present a summary of it so far as it bears upon the present subject.

A sum of money secured by mortgage had been assigned

(*d*) Fellows v. Mitchell, 1 P. W. 83. For the ordinary and more natural application of this illustration, see *infra*, Ch. XXX. s. 2.

(*e*) Brice v. Stokes, 11 Ves. 319; Bone v. Cook, M'Clel. 168; Gregory v. Gregory, 2 Y. & C. 313; Thompson v. Finch, 22 Beav. 316; Lincoln v. Wright, 4 Beav. 427; and see *Re Fryer*, 3 K. & J. 317. This doctrine appears to have been very little re-

garded in the time of Lord Talbot. See Attorney-General v. Randall, 21 Vin. Ab. 534.

(*f*) Thompson v. Finch, 22 Beav. 316; 8 De G. M. & G. 500; and see Hanbury v. Kirkland, 3 Sim. 265.

(*g*) Mendes v. Guedella, 2 J. & H. 259.

(*a*) 3 Sw. 1.

(*b*) 3 Sw. 74.